

August 05, 2020



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 20697
(SECOND REVISION)

EXPIRATION DATE: 2024-07-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: ElringKlinger AG
Dettingen/Erms
Germany

US AGENT: Zoox, Inc.
Foster City, CA

2. PURPOSE AND LIMITATIONS:

a. This special permit authorizes the transportation in commerce of prototype and low production lithium ion batteries aboard cargo-only aircraft. This special permit provides no relief from the Hazardous Materials Regulations (HMR) or the International Civil Aviation Organization's Technical Instructions for the Safe Transport of Dangerous Goods by Air (ICAO TI) other than as specifically stated herein. The most recent revision supersedes all previous revisions.

b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.

c. No party status will be granted to this special permit.

d. This special permit serves as an approval under Special Provision A88 of the ICAO TI and as a "Competent Authority Approval" as defined under 49 CFR § 107.1.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180 and the ICAO TI.

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4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.185(a)(1) in that the lithium ion batteries that have not passed the criteria in Part III, subsection 38.3 of the UN Manual of Tests and Criteria are authorized as specified herein.
5. BASIS: This special permit is based on the modification application of ElringKlinger, AG, dated June 9, 2020, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Lithium ion batteries <i>including lithium ion polymer batteries</i>	9	UN3480	N/A

7. SAFETY CONTROL MEASURES:

a. SAFETY CONTROLS:

(1) Only prototype and low production lithium ion batteries may be offered for transportation under the terms of this special permit. ("Low production" is defined as a production run of no more than 100 batteries annually of a particular type.)

(2) The battery (with a nominal energy rating of 62.7 kWh) is comprised of cells described in the August 23, 2018 submittal and on file with the Office of Hazardous Materials Safety Approvals and Permits Division.

(3) Batteries must be protected against short circuits during transport.

(4) Cells and batteries must be offered for transportation at a state of charge not greater than 30%.

(5) The battery must be equipped with an effective means of preventing dangerous reverse current flow when cells are connected in parallel.

b. TESTING:

(1) The cells must be of a type that has passed the required tests in accordance with the UN Manual of Tests and Criteria, 6th Revised Edition.

(2) The battery need not be of a type that has passed the required tests in accordance with the UN Manual of Tests and Criteria, 6th Revised Edition.

c. PACKAGING:

(1) Each battery must be individually packaged in a non-metallic inner packaging and surrounded by cushioning material that is non-combustible and non-conductive.

(2) Batteries having a mass of 12 kg or greater and having a strong, impact resistant outer casing may be packed in strong outer packagings or in protective enclosures (for example, in fully enclosed or wooden slatted crates).

(3) The net weight of the lithium battery in a single package must be 389 kg $\pm$ 5 kg.

(4) Only one battery is authorized per package.

d. MARKING: Each package covered under the terms of this special permit must be durably and legibly marked and displayed on a background of contrasting color with "DOT-SP 20697".

8. SPECIAL PROVISIONS:

a. Under the terms of this special permit, the grantee may only offer hazardous materials (i.e., the grantee is not authorized as a carrier).

b. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit, the HMR, and the ICAO TI.

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c. A current copy of this special permit must be maintained and made available for examination at each facility where the materials are package and offered or reoffered for transportation.

d. This special permit in no way affects the need to obtain any required authorizations from other agencies of the United States Government or from the competent authorities of countries of origin, transit, and destination.

e. The grantee must maintain a record of all activity conducted under the authority granted in this special permit and upon request make this information available to DOT representatives or enforcement officials. The record must contain a listing and number of shipments made to include:

(1) Dates of shipment; and

(2) Description of each type of shipment.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo-only aircraft.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

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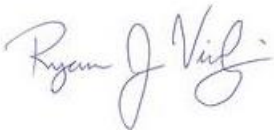
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at

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http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm

Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Steve H/NICKS